

NATIONAL REPORT OF TURKEY ON THE IMPLEMENTATION OF THE RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

GENERAL INFORMATION:

Country name: TURKEY

Organization or entity responsible for the preparation of the report: Directorate General For EU and Foreign Relations/Ministry of National Education

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention¹

Is your country a State Party to the Convention?

☐ Yes

☒ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

¹ http://portal.unesco.org/en/ev.php-URL_ID=12949&URL_DO=DO_TOPIC&URL_SECTION=201.html

2. **Ratification of the Protocol² instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☒ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

The right to education has been ensured by the Constitution of the Republic of Turkey, the Basic Law of National Education, the other Laws regulating the education system, and Development Plans, 2023 Education Vision Document, which are regarded as basic policy documents, and the other legislation regulating the principles related with the type, level and function of education.

According to Article 10 of the Constitution entitled “Equality before the law”;

“Everyone is equal before the law without distinction as to language, race, colour, sex, political opinion, philosophical belief, religion and sect, or any such grounds.

(Paragraph added on May 7, 2004; Act No. 5170) Men and women have equal rights. The State has the obligation to ensure that this equality exists in practice. (Sentence added on September 12, 2010; Act No. 5982) Measures taken for this purpose shall not be interpreted as contrary to the principle of equality.

(Paragraph added on September 12, 2010; Act No. 5982) Measures to be taken for children, the elderly, disabled people, widows and orphans of martyrs as well as for the invalid and veterans shall not be considered as violation of the principle of equality.

No privilege shall be granted to any individual, family, group or class.

State organs and administrative authorities are obliged to act in compliance with the principle of equality before the law in all their proceedings.

According to Article 42 of the Constitution entitled as “Right and duty of education”;

“No one shall be deprived of the right of education. The scope of the right to education shall be defined and regulated by law.

Primary education is compulsory for all citizens of both sexes and is free of charge in state schools.”

The Basic Law of National Education numbered 1739 determines general framework of Turkish National Education System. In the 4th, 7th and 8th articles of the The Basic Law

of National Education some provisions are taken to guarantee the right to education for all and to promote equal educational opportunities.

“(4) Educational institutions are open to everyone, regardless of language, race, gender, disability and religion. No privileges can be granted to any person, family, group or class in education.

(7) It is the right of every Turkish citizen to have primary education. Citizens benefit from educational institutions after primary education in terms of their interests, aptitudes and abilities.

(8) In education, equal opportunities and possibilities are provided to all men and women. Necessary aid is provided through free boarding, scholarships, loans and other means to ensure that successful students without financial means are educated to the highest educational levels. ”

There is an education objective in the 11th Development Plan in Article 547 which states that “The basic objective is to raise happy and productive individuals who have advanced thinking, perception and problem solving skills, self-confidence, sense of responsibility, entrepreneurial and innovative peculiarities, internalized democratic values and national culture, who are open to sharing and communication, have strong sense of arts and aesthetics and are skilled at using technology, through enabling access to comprehensive and qualified education and lifelong learning opportunities for all individuals.”

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

The right to education is a universal right guaranteed by the Constitution of the Republic of Turkey and is free of charge. Compulsory education covers the 12-year period from primary school to the end of high school. Distance learning option is available for students who cannot attend school for any reason. Legal action is taken against the parents whose children do not attend school. Coeducational model has been adopted and implemented in Turkey.

There is no gender discrimination in education; on the contrary, positive discrimination policies have been implemented in favor of girls. With the view to involve girls in the education system who are not sent to school for various reasons and to ensure their attendance, some initiatives such as different projects, programs, campaigns are frequently implemented by both public institutions and the private sector, non-governmental organizations, especially the Ministry of National Education. In this framework, there are many successful examples such as the Campaign called “Haydi Kızlar Okula” (Hey Girls, Let's Go to School), the Project for Increasing Enrolment Rates Especially for Girls (KEP1), the Project for Increasing School Attendance Rates Especially for Girls (KEP2), and Eliminating Gender Inequality in Education Project.

Turkey is currently home to a large number of the refugees / migrants and the people under temporary protection. There is no obstacle for these people to receive both general and vocational education. The Ministry of National Education has initiated studies for Syrians and their children, who have been under temporary protection since the first day of the mass migration movement that started in 2011, to receive education in Turkey. MoNE sees education not only as a fundamental right for Syrian children, but also as the most basic tool for them to survive the difficult period they live, to ensure that Syrian children are not lost generations and can build a beautiful future for themselves. In this direction policies that increase and improve educational opportunities are being developed for the Syrian children welcomed as guests in Turkey. Syrians living in all over Turkey are included in the current education system and provided access to services together with their Turkish citizens. Syrian students continue their education with their Turkish peers from preschool education to the 12th grade in public institutions affiliated to MoNE. There are no obstacles for Syrian students to enroll in public and private schools.

According to the data of September 2019, there are 1,082,172 Syrian people at the school age in Turkey. 684,919 of them have access to education. 154,446 (100,178 men, 54,268 women) foreign students are enrolled in higher education in Turkey. 27,034 of these students are Syrian students under temporary protection.

Many programs and projects are carried out by the Ministry for Syrian students to attend schools and receive education on equal terms and quality with their Turkish peers. In this context, studies continue on Turkish language education for Syrians with national and

international funds, increasing enrolment rates for Syrian children who are out of school, encouraging Syrians to vocational education, and social and cultural adaptation. Through the projects such as “The Project of Social Cohesion Through Vocational and Technical Education”, “the Project of Vocational and Technical Education and the Labor Market Services for Syrian Refugees and Host Communities in Turkey”, the educational needs of these people have been met.

The following projects related to the education of Syrians under Temporary Protection are carried out:

- Increasing Access to Turkish Language Learning and Vocational Training for Syrians under Temporary Protection in Turkey Project
- Supporting Economic Opportunities for Syrians Under Temporary Protection and Host Society (Promoting Employment Project / PEP)
- Accelerated Compensation Education Project (HEP) for Syrian Refugees Under Temporary Protection Remain out of Formal Education
- Turkey Resilience Project in response to the Syria Crisis (TRP) Turkish Language Education for Adults Project
- Quality Education and Livelihoods Support for Syrian under Temporary Protection in Turkey
- Turkish Language Education Project for Adults
- Qudra – Resilience for Syrian Refugees, IDPs and host communities in response to the Syrian and Iraqi crises
- ELITE (Enhancing Learning, Innovative Teaching, Education Environment)
- Education Programme for Syrian Refugees and Host Communities in Turkey (BilSy)
- Promoting Integration of Syrian Kids into the Turkish Education System (PIKTES).

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.³*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁴ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum

☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

According to Article 10 of the Constitution entitled “Equality before the law”;

“Everyone is equal before the law without distinction as to language, race, colour, sex, political opinion, philosophical belief, religion and sect, or any such grounds.

(Paragraph added on May 7, 2004; Act No. 5170) Men and women have equal rights. The State has the obligation to ensure that this equality exists in practice. (Sentence added on September 12, 2010; Act No. 5982) Measures taken for this purpose shall not be interpreted as contrary to the principle of equality.

³ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁴ See: Article/Paragraph 1(1).

(Paragraph added on September 12, 2010; Act No. 5982) Measures to be taken for children, the elderly, disabled people, widows and orphans of martyrs as well as for the invalid and veterans shall not be considered as violation of the principle of equality.

No privilege shall be granted to any individual, family, group or class.

State organs and administrative authorities are obliged to act in compliance with the principle of equality before the law in all their proceedings.

According to Article 42 of the Constitution entitled as “Right and duty of education”;

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(7) It is the right of every Turkish citizen to have primary education. Citizens benefit from educational institutions after primary education in terms of their interests, aptitudes and abilities.

(8) In education, equal opportunities and possibilities are provided to all men and women. Necessary aid is provided through free boarding, scholarships, loans and other means to ensure that successful students without financial means are educated to the highest educational levels. ”

As stated above our legislation includes regulations in place to ensure non discrimination and non-differential treatment in education.

Turkey is currently home to a large number of the refugees / migrants and the people under temporary protection. There is no obstacle for these people to receive both general and

vocational education. The Ministry of National Education has initiated studies for Syrians and their children, who have been under temporary protection since the first day of the mass migration movement that started in 2011, to receive education in Turkey. MoNE sees education not only as a fundamental right for Syrian children, but also as the most basic tool for them to survive the difficult period they live, to ensure that Syrian children are not lost generations and can build a beautiful future for themselves. In this direction policies that increase and improve educational opportunities are being developed for the Syrian children welcomed as guests in Turkey. Syrians living in all over Turkey are included in the current education system and provided access to services together with their Turkish citizens. Syrian students continue their education with their Turkish peers from preschool education to the 12th grade in public institutions affiliated to MoNE. There are no obstacles for Syrian students to enroll in public and private schools.

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Many programs and projects are carried out (stated above) by the Ministry for Syrian students to attend schools and receive education on equal terms and quality with their Turkish peers. In this context, studies continue on Turkish language education for Syrians with national and international funds, increasing enrolment rates for Syrian children who are out of school, encouraging Syrians to vocational education, and social and cultural adaptation. Through the projects such as “The Project of Social Cohesion Through Vocational and Technical Education”, “the Project of Vocational and Technical Education and the Labor Market Services for Syrian Refugees and Host Communities” in Turkey, the educational needs of these people have been met.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education

☐ Other:

- Individuals are provided with the opportunity to receive diplomas in the formal education age and out, and the opportunity to move to the next education level is provided by means of Open Education Schools.
- Themes are included in the curriculum and educational contents to create awareness about the prevention of discrimination.
- The process of examining and approving the educational content is carried out in accordance with the criteria for preventing all forms of discrimination.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁵

Legislation in Turkey guarantees the right to education of all individuals.

In Article 10 of the Constitution entitled “Equality before the law”;

“Everyone is equal before the law without distinction as to language, race, colour, sex, political opinion, philosophical belief, religion and sect, or any such grounds.

(Paragraph added on May 7, 2004; Act No. 5170) Men and women have equal rights. The State has the obligation to ensure that this equality exists in practice. (Sentence added on September 12, 2010; Act No. 5982) Measures taken for this purpose shall not be interpreted as contrary to the principle of equality.

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No privilege shall be granted to any individual, family, group or class.

State organs and administrative authorities are obliged to act in compliance with the principle of equality before the law in all their proceedings.

⁵

Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

In Article 42 of the Constitution entitled as “Right and duty of education”;
“No one shall be deprived of the right of education. The scope of the right to education shall be defined and regulated by law.

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- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially

marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|---|
| ☒ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| ☒ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Adapting curricula and methods |
| ☒ Training teachers on inclusive education | ☒ Providing language classes to newcomers (e.g. refugees) |
| ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☒ Eliminating administrative barriers to education ⁶ |
| ☒ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education. | ☒ Valuing diversity in schools |
| ☐ Other: | ☒ Combatting stereotyping and stigmatisation |

➤ **Opportunities for students with disabilities**

- Efforts are underway to strengthen physical infrastructure adapted for students with disabilities. Reading and writing devices enable the translation of written documents into Braille alphabet are now in practice to enable visually impaired people to access to the educational materials.,
- As of 2018, 40% of the schools (1,200 in number) were adapted for students with disabilities; it is aimed to increase this number to 2,000 by 2023. Free transport and lunch services are offered to students with special needs to ensure their educational continuity.

➤ **Lifelong learning Opportunities**

- Individuals are provided with the opportunity to receive diplomas in the formal education age and out, and the opportunity to move to the next education level is provided by means of Open Education Schools.
- Through lifelong learning courses, contribution has been made to individuals' skill development in or out of formal education.
- If there is a suitable environment and opportunity in the institutions, community-based child care and play rooms with flexible hours and time are created for trainees' children aged 3-6 in order to ensure the active participation for individuals with children in their

⁶ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

learning environments in their social, cultural and professional life. In this way, especially the education opportunities for women attendees have been increased.

➤ **Teacher Trainings**

- A 10-modules in-service training program was prepared for teachers, which included topics such as working with children with disabilities, working with children affected by migration and terrorism, and working with children exposed to violence. 75.249 teachers and 74.849 school administrators participated in the training.
- Within the scope of the Program of Improving Guidance Skills of Preschool and Primary School Teachers in the Context of Inclusive Education, 427 counselors were provided with trainer training in 2019 and then 7177 preschool and primary school teachers received training in their neighborhood.
- "Professional Development Program of School Administrators in the Context of Inclusive Education" is carried out in cooperation with the Ministry of National Education and UNICEF. In 2019, training for trainers was held with the participation of 108 school administrators. In 2020, training for trainers was held with the participation of 184 school administrators. 9377 school administrators were trained within the scope of local trainings in 2019.
- "Strengthening the Capacity of Teachers for Teaching Turkish as a Second Language in the Context of Inclusive Education Program" has been carried out in collaboration with the Ministry of National Education and UNICEF. The aim of the program is to increase the pedagogical knowledge and skills of classroom and Turkish teachers who work in Turkey to ensure that foreign students, whose number is increasing in public schools, have access to a qualified education.
- Trainer trainings were held with the participation of 459 Turkish Teachers and Primary School Teachers in 2019 and of 539 Turkish Teachers and Primary School Teachers in 2020. Local trainings were given to 6425 Turkish Teachers and Primary School Teachers within the scope of the program in 2019.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

The Project For Increasing Enrolment Rates Especially For Girls (KEP1)

This project was carried out to increase enrolment rates especially for girls in primary and secondary education levels, to decrease school dropout rates, to increase vocational skills and competences of labour force and to raise the family awareness of the importance of education.

Increasing the quality of education, strengthening the link between education and the labor market and increasing the investment in human resources by raising the enrolment rates at all levels, especially for girls are the main targets. Within the framework of the project, the goals of raising awareness on the importance of girls' education, creating awareness and involving girls in the education system were achieved through many activities such as preparation of provincial action plans, awareness raising meetings, distribution of student support packages, home visits, teacher training, preparation of public service announcements etc.

Project For Increasing School Attendance Rates Especially For Girls (Kep2)

This project was carried out to increase school attendance rates especially for girls in primary and secondary education levels, to increase vocational skills and competences of labour force and to raise the family awareness of the importance of education. Increasing the quality of education, strengthening the link between education and the labor market and increasing the school attendance rates at all levels especially for girls, and increasing the investment in human resources are the main targets. Within the framework of the project, trainings were given to the newly appointed teachers, local agencies and families on the importance of education; dormitories were built and school equipment was provided; school and family visits were made; a career guidance booklet was prepared and delivered to students and parents.

Project For The Development of Professional Skills (Mesgep)

With this project applied in 81 Provinces, it was aimed to provide employment by taking into consideration to the interests of individuals who did not have a profession and individuals who required special policy (ex-prisoners, women, disabled people, those exposed to violence, etc.) and those who wanted to change their professions and to gain professional competence by increasing these skills to higher levels.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☐ No ☒

Please provide reference to the relevant laws and provisions:

According to Article 124 of the Turkish Civil Code “Man or woman cannot marry unless they are seventeen. However, the judge may allow a man or woman who has turned sixteen to marry in extraordinary circumstances and for very important reasons.”

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁷. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Pre-school education is not compulsory in Turkey.

☐ Pre-primary education is free of charge for all: Please provide the duration:

Pre-primary education in Turkey is free for pre-school children aged 36-69 months at educational institutions affiliated to Ministry of National Education.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Pre-school education

The first paragraph of Article 67 of Regulation on Pre-School and Primary School Institutions by Ministry of National Education states that “pre-school education is free of charge in public preschool education institutions”. With this statement, access to free education is guaranteed in public preschool education institutions.

According to the first paragraph of the Article 6 of the same regulation; “It is essential to carry out normal training for 6 hours of activity, each of them lasts 50 minutes a day. The activities include the time of starting the day, playing, feeding, cleaning, activity, resting and

evaluating the day. However, dual education is compulsory in schools where there are children not enrolled in registration area.” With this statement, enrolment of the children who are on the candidate registration list of each school and who will start primary school next year is ensured.

The following statement exists in the first paragraph of the Article 82 of the same regulation, "To ensure access of preschool education to children in residential areas where the preschool-aged population is not dense so the schools cannot open, or where the physical conditions are insufficient and the preschool-aged population is dense; mobile teacher classroom, mobile classroom, transport center kindergarten, summer education and similar models of access to flexible time education can be applied, and mobile teacher can be assigned. At least 200 activity hours of training per year is provided in different access models to be implemented. Training in one day cannot be less than 2 (two) hours of activity. Children who could not benefit from pre-school education are registered in the summer months, especially the children who will start primary school in the next school year ”. According to this statement, alternative and completely free access models are applied for unschooled children.

Importance accorded to early childhood education is gradually increasing in the context of reducing poverty through generations and increasing equality of opportunities. Within this scope, the objective is to ensure that every child attends preschool education minimum one year before primary education and to increase the schooling rate at age 5 from 75% to 100%. Further, it is obligatory for nurseries, daycare centres and children clubs operated by the private sector to allocate 3% of their current capacities for disadvantaged and poor children. Besides, children with disabilities who need special education benefit from education services free of charge.

In the framework of Turkey’s 2023 Education Vision, it is planned to provide children living in poor households with key educational materials that will support their development, and mainstream alternative and communitybased early childhood education services for children in low density settlement areas. In this context, various centres, workshops and mobile bus classrooms are created. In addition, programmes are prepared to meet the nutrition needs of children in unfavourable conditions, and special curricula are created for schools with seasonal agricultural worker children, children under temporary protection and children in villages. With the “Mobile Nursery Class Teaching” pilot application, preschool education

is provided to children at preschool age in the areas where it is not possible to open classes due to the insufficient number of students.

In the framework of the Summer Nursery Classes Programme which is conducted since 2003 with an ever-broadening scope; a 10-week accelerated preschool education programme is implemented for children in 4 to 6 age group. Further, Mother Support Programme training is provided to the mothers of these children. For school adaptation problems faced by Syrian children, the programme is also implemented as a short-term intervention programme to increase their readiness for school.

The Inclusive Early Childhood Education Project for Children with Disabilities was launched in 2017 to support children with disabilities in participating in social life with children who do not have disabilities, by means of quality and inclusive education from early childhood till the end of 1st grade.

As a result of the efforts to expand early childhood education, there was significant progress in the access to preschool education. The net pre-schooling rate for age 5 increased to 68.3 % in the academic year of 2018-2019.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

According to Article 7 of Primary Education Law No. 222;

"Primary education is a National Education Institution, which consists of a four-year compulsory primary school and a four-year compulsory secondary school, which was established in order to achieve the purpose stated in Article 1."

According to Article 25 of the Basic Law of National Education No. 1739; "Primary education institutions are composed of four-year compulsory primary schools and four-year compulsory secondary schools and religious secondary schools, which allow choosing different programs between secondary schools."

In subparagraphs (a) and (b) of the sixth paragraph of Article 11 of the Regulation of the Preschool Education and Primary Education Institutions of the Ministry of National Education;

"a) Children who are 69 months old by the end of September of the year of registration, are enrolled in the first grade of primary schools. In addition, 66, 67 and 68 months old children who have written requests from their parents are also enrolled in the first grade of primary school.

b) The school directorates direct the children to preschool education who are 69, 70 and 71 months old and have the right to register or postpone their enrolment for one year if their parents have a written request." Enrolment age for primary school is regulated in accordance with these provisions.

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Primary education is compulsory for 8 years; 4 years primary school and 4 years secondary school. The Article 42 of the Constitution of the Republic of Turkey states that " Primary education is compulsory for all citizens both girls and boys, and is free of charge in state schools."

In the second paragraph of Article 15 of Regulation on School Family Association of the Ministry of National Education, the following provision takes place; "Associations cannot force parents to make donations under any circumstances, and during the school enrolment period donations cannot be collected."

In addition, the following provision exists in Article 16 of the Basic Law of National Education No. 1739; "Cooperation between the school and the family is provided to contribute to the realization of the aims of educational institutions. For this purpose, school-family associations are established in schools. School-family associations can accept in-kind and cash donations in order to bring effectiveness and efficiency to the education and training services in schools, to meet the basic needs of the students having no financial means. In order to make financial contributions, they can organize social and cultural events and campaigns, and run open spaces, canteens, saloons and similar places within the schools or have them run. Parents of students cannot be forced to donate under any circumstances. The procedures and principles regarding all the followings are regulated by the regulation jointly prepared by the Ministry of Finance and the Ministry of Education: the establishment and operation of School-Family Association; the formation and election types of association agencies; financial contributions from social and cultural activities; distribution locations, rates, expense and inspection of incomes from running open spaces, canteens, salons and similar places or having them run.

In line with the principle of equal opportunities for all, several projects are implemented by public, private sector and NGOs to ensure compulsory education age group benefits from free and quality primary and secondary education and support individuals who drop out of education early to continue their education.

Since 2003, course books have been distributed free of charge at the primary and secondary education levels.

Additionally, free accommodation and boarding facilities are provided to students. It is aimed to expand the boarding facilities across the country for all children in need is expanded to reduce transportation needs to schools and to minimize students' dropout living under unfavourable conditions. Transportation services are provided for students living in remoted areas to ease their access to primary and secondary education.

- ☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

The provision exists in the 90 / last Article of Constitution, “International agreements duly put into effect have the force of law. No appeal to Constitutional Courts shall be made with regard to these agreements, on the ground that they are unconstitutional. (Sentence added: May 7, 2004- 5170/7 art.) In case of a conflict between international, duly put into effect, concerning fundamental rights and freedoms and laws due to differences in provisions on the same matter, the provisions of international agreements shall prevail. Due to this article, the provisions of the ECHR and the Convention on the Rights of the Child have the force of law.

The provision exists in Article 42 of the Constitution, "Primary Education is compulsory for all citizens, both girls and boys and is free of charge in public schools." In this context, students do not make payment such as exam fee, book fee or registration fee. This provision exists in the same article, “The State provides scholarships and other necessary assistance to successful students who lack financial means in order that they can continue their education. The State takes precautions to make the students, in need of special education due to their situation, beneficial to society. ” In Law on School *Boarding* Houses No. 2698 and Law on Educating Unpaid Boarding or Beneficiary Students in Primary and Secondary Education

and Social Aids for Them No. 2684, It is ensured that necessary measures will be taken to provide equality of opportunity and possibility towards being a social State.

According to Article 26 of the Basic Law of National Education No. 1739, “Secondary Education covers all general, vocational and technical education institutions and vocational education centers providing four-year compulsory formal or non-formal education based on primary education. Those who graduate from these schools and institutions receive a diploma according to the characteristics of the program they complete. However, it is compulsory for vocational education center students to complete the difference courses determined by the Ministry of National Education in order to receive the diploma. Besides, in the Provisional Article 3 of the same law this provision exists, "Compulsory secondary education is implemented as of 2012-2013 academic year".

According to Article 8 of the The Basic Law of National Education No. 1739, “Equal means and opportunities for girls and boys in education are provided. Necessary assistance are provided through free boarding, scholarships, loans and other means in order to ensure successful students who lack financial means to study up to the highest education levels. Special precautions are taken to raise children in need of special education and protection." In line with the principle of equal opportunities for all, several projects are implemented by public, private sector and NGOs to ensure compulsory education age group benefits from free and quality primary and secondary education and support individuals who drop out of education early to continue their education.

Since 2003, course books have been distributed free of charge at the primary and secondary education levels.

Additionally, free accommodation and boarding facilities are provided students. It is aimed to expand the boarding facilities across the country for all children in need is expanded to reduce transportation needs to schools and to minimize students’ dropout living under unfavourable conditions. Transportation services are provided for students living in remoted areas to ease their access to primary and secondary education.

Like all stages and types of compulsory education in Turkey, vocational and technical education is also free of charge. Depending on the results of a national examination held at the central level in the final year of secondary school, students can enroll in vocational and

technical secondary education institutions. The books to be used during education and materials to be used in workshops are provided by the State, but costs on students' clothing and transportation to the school are provided by their families. Apprenticeship education is in the scope of 12-year compulsory education. Skill training in enterprises is provided and State contribution to the fee paid to the students by the enterprises is also provided. Students in 10th, 11th and 12th grades receiving vocational and technical education are insured against occupational accidents and occupational diseases by the State. All vocational and technical secondary education graduates are given the title of technician.

- ☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☒ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

According to Article 26 of the Basic Law of National Education No. 1739, "Secondary Education covers all general, vocational and technical education institutions and vocational education centers providing four-year compulsory formal or non-formal education based on primary education. Those who graduate from these schools and institutions receive a diploma according to the characteristics of the program they complete. However, it is compulsory for vocational education center students to complete the difference courses determined by the Ministry of National Education in order to receive the diploma. Besides, in the Provisional Article 3 of the same law this provision exists, "Compulsory secondary education is implemented as of 2012-2013 academic year".

The net schooling rate in secondary education level is 83.88 % for girls and 84.51 % for boys in the 2018-2019 academic year. Private sector and NGOs' projects and campaigns significantly contributed to this progress while also supported the extension of the compulsory education's duration.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

The following provision exists in Article 3 of the Primary Education Law, "Compulsory primary education involves children between the ages of 6-14. Children who have completed 72 months on 31 December of that year, are enrolled in the first grades of primary schools. However, depending on the child's developmental situation, the issues related to the starting school at an early age or postponing their enrolments are regulated by regulations. "

In the 21st Article of the Regulation on Secondary Education Institutions, this provision takes place "In order to enroll in secondary education institutions, it is required to have completed the secondary school or religious secondary school and not to have completed the age of 18 at the beginning of the academic year. Students who do not meet the age requirement are not enrolled in formal secondary education institutions. (Additional sentence: RG-26/3 / 2017-30019) (Different sentence: RG-1/9 / 2018-30522) Age requirement is not required for those who have not suspended their education. However, those who cannot graduate from the school are expelled and directed to open secondary education institutions or vocational education centers, except those who are able to graduate from school by taking the responsibility exams at the end of the academic year at the age of 22. However, the age-related provisions of this paragraph do not apply in the matters regarding registration and dismissal from the vocational training center. "

According to Article 71 of Labor Law on the age of employment and the prohibition on employing children; Employment of children who have not completed the age of fifteen is prohibited. However, children who have completed the full age of fourteen and their primary education may be employed on light works that will not hinder their physical, mental and moral development, and for those who continue their education, in jobs that will not prevent their school attendance. Children who have not completed the age of fourteen may be employed in artistic, culture and advertising activities that will not hinder their physical,

mental and moral development, and that will not prevent their school attendance on the condition that a written contract is made and permission is obtained for each activity separately. In the placement of children and young employees in jobs and in the types of work where they are employable, their security and health, physical, mental and psychological development as well as their personal suitability and capability shall be taken into consideration. The job the child performs must not bar him from attending school and from continuing his vocational training, nor impair his pursuance of class work on a regular basis.

Jobs that are prohibited for children and young workers under the age of eighteen, and jobs to allow young workers to work, who have completed fifteen years of age but have not completed eighteen years of age; light jobs for children who have completed fourteen years of age and have completed the compulsory primary school age; jobs and working conditions for young workers who have completed sixteen years of age and children who not completed eighteen years of age shall be determined in a regulation of the Ministry of Labour and Social Security to be issued within six months. (1) (2) (Amended fourth paragraph: 4/4 / 2015-6645 / 38 art.) The working hours of children who have completed their basic education and yet who are no longer attending school shall not be more than seven hours a day and more than thirty-five hours a week; and for the children who are employed in the artistic, cultural and advertising activities working time shall not be more than five hours a day and thirty hours a week. However this working time may be increased up to forty hours a week for the children completed the age of 15. The working hours during the education term of the children who receive preschool education and attend school may be at most two hours a day and ten hours a week, outside the education hours. The working hours for holiday terms shall not exceed the periods set forth in the fourth paragraph above. (3) (Paragraph added on 4 April 2015 by Article 38 of the Law No. 6645) The scope of artistic, cultural and advertising activities, the work permit of the children to be employed in such activities, the working periods and breaks according to age groups and types of activities, the work environment and its conditions, the procedures and principles regarding the payment of the wage as well as other issues shall be laid down in a regulation to be issued by the Ministry of Labour and Social Security, by receiving the opinions of the Ministry of Family and Social Policies, the Ministry of Culture and Tourism, the Ministry of Health, the Ministry of National Education and the Supreme Board of Radio and Television. It is understood from the expressions in the law that a 15-year-old child can be employed, subject to certain restrictions and will not encounter any limits after 18.

When all these provisions are evaluated together, compulsory education ends for the students who have completed 18 years of age, but the minimum working age is 15. Those who have completed 14 years of age and primary education are able to work if they fulfill the conditions in the law.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁸, and target 4.4⁹.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹⁰ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

There are 7,940,133 students total in the Turkish higher education system in the 2019-2020 academic year: 3,831,562 female and 4,108,571 male. The proportion of female students is 48.26%.

"Entry and placement procedures for higher education institutions are carried out in accordance with the procedures and principles determined by the Council of Higher Education provided that the measures to ensure equality of opportunity and opportunity are

⁸ Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

⁹ Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

¹⁰ See: Article/Paragraph 1(1).

taken." and "Higher education institutions are entered through central exams, the principles of which are determined by the Council of Higher Education. Secondary education grades of candidates are taken into account in calculating placement scores. " provisions are included. Candidates are placed in higher education programs according to their scores and considering their preferences and program quota. With the central placement system in higher education institutions, candidates with disabilities in higher education are supported by ÖSYM (Center of Assessment, Selection and Placement) exam applications.

In the exam process, for disabled candidates, opportunities such as giving additional time, taking the exam in a private hall, reader/marker assistance, and bringing the equipment beside them are provided and exam applications for disabled candidates are detailed in the relevant exam guide. For detailed information related to exam applications please visit the web site of the Center of Measurement, Selection and Placement at www.osym.gov.tr

In the selection and placement procedures of candidates who cannot benefit from educational services sufficiently because of the severe and permanent dysfunction or impairment in their physical characteristics (for example, physical or visual or hearing deficiency despite all corrections), type of their disability, degree of disability, their scores, their preferences are made taking into account. The degree of disability specified in the medical board reports is examined by ÖSYM (Center of assessment, selection and placement), and whether the candidates is subjected to a separate selection and placement process due to their disability is determined according to the results of these examinations.

The decisions taken by our Agency regarding special talent exams held by higher education institutions, the applications and exam processes such as ensuring the acceptance of applicants with disabilities, evaluating only the talent exam results and a separate aptitude test to be held among themselves without including of the TYT scores in the evaluation, allocating quotas for programs that accept students only with the special talent exam are as follows:

With the decision of the Higher Education General Assembly dated 19/12/2013 in programs that accept students with a special aptitude exam, It is deemed appropriate that the students, whose the TYT (Basic Ability Test) score is 100 or higher in the relevant year, are accepted to special aptitude exams, provided that they certify that they are disabled (physically handicapped, visually impaired, hearing impaired, "common developmental disorders" (autism spectrum disorders (ASD), Asperger syndrome, RETT syndrome, disintegrative

disorders, common developmental disorders in the unclassified group). With the decision of the General Assembly of Higher Education dated 25.09.2014, it was deemed appropriate for the candidates with disabilities to be evaluated according to the results of their aptitude exams; TYT score will not be taken into account for the programs that accepts students according to score in the special aptitude test. With the decision of the General Assembly of Higher Education dated 30.03.2017, it was deemed appropriate to include the candidates with mental disabilities in the above disability groups and to evaluate the candidates with disabilities according to the results of a separate skill examination to be held by themselves. With the decision of the General Assembly of Higher Education dated 20/07/2017. it is deemed appropriate that for students with disabilities in applying for special aptitude exams, the TYT Score is considered to be valid for 2 years including the year of the exam. With the decision of General Assembly of Higher Education dated 08/02/2018, it is deemed appropriate that in the program accepting students with a special aptitude exam, 10% of the quota of each program, published in the ÖSYM (Center of Assessment, Selection and Placement) Guide of the relevant year, is to be allocated for students with disabilities.

In addition, it is aimed to make all higher education institutions accessible to individuals with disabilities in the long term. In this context, criteria have been determined in the fields of space, education and socio-cultural for the University Accessibility Award launched in 2018. Universities carried out successful studies in order to ensure full, effective and equal participation of individuals with disabilities were awarded "University Accessibility Flags" in these three categories and the relevant programs of universities that make their programs accessible to different disability groups were awarded "Accessibility Program " in 2018 and 2019. While 399 applications from 44 universities in various categories were made for the University Accessibility Award in 2018, the number of applications made by 81 higher education institutions in 2019 reached 653. While In 2018, 18 universities were awarded 60 flags; in 2019, 28 different universities were awarded 126 flags in total. There has been a significant increase in applications compared to last year. In addition, this year, it was nominated for the Disability Friendly Awards given for the first time due to its contributions towards disabled people, and 5 out of 139 different students and academicians from 50 universities received this award.

In the 2020 Higher Education Institutions Exam (YKS) Guide, candidates who choose the option "I did not take compulsory Religious Culture and Moral courses in secondary education." under the heading of " The Status of Answering Religious Culture and Moral

Knowledge-Based Questions or Additional Philosophy / Philosophy Group Questions in 25th AYT Social Sciences-2 Test and TYT Social Sciences Test”, will answer additional Philosophy / Philosophy Group questions in the exam, but will not answer Religious Culture and Moral Knowledge questions.

Regarding the equivalency documents requested in graduate education admission process from the candidates who are abroad, Republic of Turkey nationals and foreign nationals that are graduated from a higher education program institution which was accepted by the Higher Education Council; It was decided, in the Higher Education Steering Committee Meeting dated 13.09.2017, not to request a recognition certificate from the Higher Education Council or to ask for a Diploma Equivalency Certificate as to whether the institutions where they have been educated before (except for refugees).

Various studies are carried out by the Higher Education Council for the integration of Syrians under temporary protection and students and academicians who have war, occupation and annexation conditions in higher education, especially with the onset of the Syrian crisis. It was very useful to take various courses by placing them in schools with special student status, especially in the acute period when the Syrian crisis started; refugee young people were allowed to stay in the education system; however, it was not that they took these courses directly in a program. It is up to the discretion of the relevant university whether students who take courses with the status of Special Students are exempted from the courses they take if they are admitted to any program by providing the necessary conditions in the future.

In this process, other applications developed in the world were also followed. Compared to European countries, especially in recognition and equivalence processes, the country has developed solutions that are specific to Turkey and rapid integration of refugees has been tried to be achieved. Legislative arrangements made for the refugees by the Higher Education Council Presidency were closely followed by the ENIC NARIC Network and participated in workshops as examples of good practice.

While the rate of access to higher education for refugees worldwide is 1 percent, this rate is above 5 percent in Turkey.

Detailed information can be found for recognition and equivalence of refugee students in these links:

<https://denklik.yok.gov.tr>

https://denklik.yok.gov.tr/Documents/Multeciler/Brosurler/amulteci_basvurulari_turkce.pdf

<https://denklik.yok.gov.tr/multeciler>

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☒ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

Literacy Courses

Literacy course programs are offered free of charge. Even if one person who cannot read and write applies to lifelong learning centers, there is the possibility to open a course for this person. The work on developing materials to support the Adult Literacy Program gained momentum with the start of the Literacy Campaign. Following the Intensive Basic Level Literacy Training Program, a Fast Intensive Basic Level Literacy course materials were prepared and distributed to all public education centers. Materials such as textbooks etc. prepared in this context were moved to digital media and mobile applications were developed.

Individuals who have completed the literacy program have access to education through Open Secondary School, Open High School, Vocational Open Education High School, Open Education Religious High School.

Open Education Schools

These are schools that have been opened to provide education at the level of formal education to citizens who have exceeded the formal education age limit and to citizens who cannot continue their education due to reasons such as disability, detention, illness, lack of school or access to education.

In open education schools; training is carried out with TV and Radio and is supported by printed materials. Printed materials are sent to 548 public education center directorates by cargo, which have been designated as distribution points in 81 provinces. They are also

published on the internet as e-books. Courses taught by distance education are supported by lecture videos, PDF textbooks, course materials and other digital materials on the internet through the MEB EBA (Education Information Network). 550,000 open education students have benefited from this platform. The course materials of open schools teaching with distance learning method are prepared accordingly.

Lifelong learning centers

These are institutions that organize free courses in professional, social, social, economic, sportive and cultural areas, to citizens of all ages, level of education, income, social status and cultural level in line with their interests, talents and expectations. And they are easily accessible institutions in adult education.

Public education centers carry out their activities in education rooms, especially in provinces, districts and villages, in prisons and correctional facilities, in hospitals that require rehabilitation, in shanty areas, in public and private establishments, in buildings belonging to formal education institutions and in other places where they are needed. There is no limit to age and education to benefit from non-formal education services. However, due to the nature of the program to be implemented, age and education level can be required.

General and vocational education programs are offered to individuals in lifelong learning centers. These courses are free of charge. It is also emphasized in the Regulation on Lifelong Learning Institutions that it is free of charge.

People can learn about learning opportunities through lifelong learning Web Portal <http://www.hbo.gov.tr/>

People's access to education is increased through HBÖTV <http://www.hbo.gov.tr/HBOTV>. Studies are carried on spreading distance education applications in the field of lifelong learning. <http://e-ogrenme.gov.tr>. General Directorate for Lifelong Learning Distance Learning System has been launched and more than 40,000 attendees have been trained since March 2019.

Programs in Higher Education Institutions

Programs aiming to gain knowledge, skills and competence in different areas for all segments of society including disadvantaged groups are carried out in higher education institutions. These programs and activities are summarized below.

Continuing Education Application and Research Centers

Continuous education centers operating within higher education institutions provide trainings for all segments of the society within the scope of lifelong learning. Apart from academic programs, these centers organize courses, seminars, conferences, vocational training programs, certificate programs, corporate trainings, language trainings and personal development trainings for any subject and age group. Participation certificate, certificate of achievement and certificate are given to those who participate and succeed in such activities and training programs; trainings are generally paid. In addition, such trainings can be given in various fields in application and research centers other than continuing education centers.

Open and Distance Education Programs

Open education and distance education programs are very important for disadvantaged individuals who are elderly, disabled or who cannot continue formal education for any reason.

Open education associate and undergraduate programs are carried out at Anadolu University Open Education Faculty and Atatürk University Open Education Faculty, open and distance education associate and undergraduate programs are carried out in Istanbul University Open and Distance Education Faculty. In addition, open and distance education programs are carried out within other faculties, schools or vocational schools of higher education institutions. These programs are included in the Higher Education Programs and Quotas Guide of the relevant year. Within the institutes, distance education non-thesis higher education programs can be opened.

Programs Under Second University

Second University programs, which allow graduates from a university or are still studying in a program, to enroll without any exam, are carried out in universities with Open Education and Open and Distance Education Faculties.

- Please elaborate further on the measures taken:

“Women First In Entrepreneurship” project is carried out with the cooperation of Ministry of National Education, Vodafone Turkey Foundation and Turkish Informatics

Foundation. In this context; <http://www.oncekadin.gov.tr> website was created for the women receiving training on information communication technologies and entrepreneurship in public education centers. And women are given the opportunity to sell their products in this digital store.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☐ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

Steps were taken to increase the access and continuously improve the quality in all schools regardless of school type to reduce the quality difference between schools. The Education Vision 2023 involving a transition from quantity to quality in education was published in 2018.

In Turkey, schooling rates were increased, human and physical infrastructure improved and the number of students per classroom reduced, the curriculum updated, special attention was given for in-service training of teachers, and funds increased for all levels of education to ensure quality education.

With new classrooms commissioned recently, there has been significant improvement in terms of the quantity of learning settings. The number of students per classroom is 24 in primary education and 20 in secondary education in the academic year of 2018-2019.

In 2017, the System of Standards for Preschool and Primary Educational Institutions was formed to assess service offered in pre-schools and primary schools based on minimum

specified criteria, collect data, and use findings in rehabilitative efforts. School administrators, teachers, parents and children assess the quality of educational services provided through this system.

All schools across the country have access to basic utilities including water, hygiene, electricity, internet etc. In September 2018, a cooperation protocol was signed between the Ministries of National Education, of Interior, and of Family, Labour and Social Services to enhance safety in schools and surroundings.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

The criteria required for those to be selected as teachers are clearly stated by law. In the National Education Basic Law No. 1739, the definition and criteria of teaching profession is specified as follows:

“Teaching is a speciality profession that takes on the State's education, training and related management duties. Teachers are obliged to perform these duties in accordance with the objectives and basic principles of Turkish National Education. Preparation for teaching profession is provided by general culture, special field education and pedagogical formation. it is essential to ensure that prospective teachers receive higher education in order to acquire

the qualifications mentioned above, regardless of their level of education. This education is arranged in a way to enable horizontal and vertical transitions at the pre-undergraduate, undergraduate and graduate levels ”

The criteria required in teaching profession are determined by the Ministry of National Education. Initial training is applied to prospective teachers who have just started teaching. The content and duration of the programs prepared for the teachers working in private education institutions before the candidate teaching process are different from the programs applied to the other candidate teachers. Directorate General for Teacher Training and Development in MoNE is responsible for the continuous professional development of teachers. In this context, face-to-face and distance education are planned and implemented. Universities, relevant institutions and non governmental organizations collaborate within the scope of professional development of teachers.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

¹¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

- ☒ Curriculum includes human rights education
- ☒ Educational and/or extracurricular activities are organized on human rights education
- ☐ Other:

The education programmes were renewed to convey values including justice, peace, friendship, respect and love to students under relevant disciplines in 2016 by MoNE.

Additionally, MoNe DG for Basic Education runs a EU- CoE joint Project entitled “Strengthening A Culture of Democratic Culture the aim of which is to integrate a democratic school culture that corresponds with universal core values as well as fundamental rights and freedoms into the education system. Within the scope of the Project;

Policy recommendations for a strategic action plan for the integration of competences for democratic culture with an awareness of human rights and democracy into the basic education system and school practices will be developed.

Education materials based on human rights, democracy and universal core values are being developed for basic education institutions.

Basic education school teachers and education practitioners will be equipped with competences for democratic culture.

Basic education institutions as well as school community and general public will have an increased awareness and better understanding of democratic school culture.

The Project outputs will be piloted as of 2020-2021 Academic year at 10 provinces in 110 schools. Depending on the results received, the results will be disseminated.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

The Law of Private Education Institutions numbered 5580

Regulation for Private Education Institutions

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹² explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☒ Curriculum is adapted to national minority needs
- ☒ Teachers are trained to adapt to national minority needs

☐ Other:

- Please provide a brief description of the provisions:

Minority schools in Turkey which are operated under the provision of the Law of Private Education Institutions that numbered 5580, are guaranteed by the Treaty of Lausanne, are minority pre-school, primary and secondary schools that minority students (Turkish Citizens) can attend to their religious community's schools.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

¹² See: Article/Paragraph 1(1).

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

Minority schools which are opened and operated under the provision of the Law on Private Education Institutions that numbered 5580, are guaranteed by the Treaty of Lausanne, are minority pre-school, primary and secondary schools that minority students (Turkish Citizens) can attend to their religious community's schools.

Article 4 of the Basic Law of National Education No.1739 says that "Educational institutions are open to everyone, regardless of language, race, gender, disability and religion. No privileges can be granted to any person, family, group or class in education." According to the Law, no specific school can be opened in the scope of above mentioned provisions; but considering the provisions of the Lausanne Treaty with the arrangements made with the legislation, this privilege has been given to only those minority schools.

According to the Law No. 6528 that published in the Official Paper 03.14.2014 dated and no.28941, private education support grants have been released for the Turkey citizen students who enrolled to private schools as constant amounts in the corresponding to their level of education. The students of minority schools have been benefitted from those private education support grants.

Turkish and Turkish culture textbooks have been provided free of charge for all minority schools by the Ministry of National Education since 2010-2011 academic year.

For Minority Schools, Turkish and Turkish culture course teachers are appointed by the approval of governor according to the provisions of Law for Turkish and Turkish Culture Course Teachers of Minority Schools that dated 05/20/1955 and no. 6581. According to amendment made on the Regulation of Private Education Institutions 4th of July, 2015, the teachers in these schools are appointed for maximum 5 years. The appointment can be extended with the proposal of the school director. One of the teachers is appointed by the governor as deputy principal by approval of the school administration.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states

to eliminate and prevent discrimination in education based notably on national origin.¹³ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁴ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

Turkey is currently home to a large number of the refugees / migrants and the people under temporary protection. There is no obstacle for these people to receive both general and vocational education. The Ministry of National Education has initiated studies for Syrians and their children, who have been under temporary protection since the first day of the mass migration movement that started in 2011, to receive education in Turkey. MoNE sees education not only as a fundamental right for Syrian children, but also as the most basic tool for them to survive the difficult period they live, to ensure that Syrian children are not lost generations and can build a beautiful future for themselves. In this direction policies that increase and improve educational opportunities are being developed for the Syrian children welcomed as guests in Turkey. Syrians living in all over Turkey are included in the current education system and provided access to services together with their Turkish citizens. Syrian students continue their education with their Turkish peers from preschool education to the 12th grade in public institutions affiliated to MoNE. There are no obstacles for Syrian students to enroll in public and private schools.

According to the data of September 2019, there are 1,082,172 Syrian people at the school age in Turkey. 684,919 of them have access to education. 154,446 (100,178 men, 54,268 women) foreign students are enrolled in higher education in Turkey. 27,034 of these students are Syrian students under temporary protection.

Many programs and projects are carried out (stated above) by the Ministry for Syrian students to attend schools and receive education on equal terms and quality with their Turkish peers. In this context, studies continue on Turkish language education for Syrians with national and international funds, increasing enrolment rates for Syrian children who are out of school,

¹³ Articles/Paragraphs 1 and 3.

¹⁴ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

encouraging Syrians to vocational education, and social and cultural adaptation. Through the projects such as “The Project of Social Cohesion Through Vocational and Technical Education”, “the Project of Vocational and Technical Education and the Labor Market Services for Syrian Refugees and Host Communities in Turkey”, the educational needs of these people have been met.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☒ Provision of language courses
- ☒ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☒ Accelerated learning programmes
- ☒ Non-formal and/or alternative education programmes
- ☒ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

The following projects related to the education of Syrians under Temporary Protection are carried out:

- Increasing Access to Turkish Language Learning and Vocational Training for Syrians under Temporary Protection in Turkey Project
- Supporting Economic Opportunities for Syrians Under Temporary Protection and Host Society (Promoting Employment Project / PEP)
- Accelerated Compensation Education Project (HEP) for Syrian Refugees Under Temporary Protection Remain out of Formal Education
- Turkey Resilience Project in response to the Syria Crisis (TRP) Turkish Language Education for Adults Project

- Quality Education and Livelihoods Support for Syrian under Temporary Protection in Turkey
- Turkish Language Education Project for Adults
- Qudra – Resilience for Syrian Refugees, IDPs and host communities in response to the Syrian and Iraqi crises
- ELITE (Enhancing Learning, Innovative Teaching, Education Environement)
- Education Programme for Syrian Refugees and Host Communities in Turkey (BilSy)
- Promoting Integration of Syrian Kids into the Turkish Education System (PIKTES).

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

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2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

Works of Turkish National Commission

Fostering close liaison between state agencies and services, professional and other associations, universities and other centres of research and education are among the works of the Turkish National Commission for UNESCO.

Being aware that discrimination in education is a violation of rights as enunciated in the Declaration, the NatCom works with the spirit of the Convention. The NatCom tries to promote equality of opportunity and of treatment in the matter of education via the programmes of education sector such as UNITWIN/UNESCO Chairs, ASPnet and Learning Cities. Besides, seminars on cultural heritage are given to the newly appointed teachers every year by the president of the NatCom to raise awareness on heritage and *“to provide training for the teaching profession without discrimination”* as indicated in the Recommendation.

In addition, pertaining to the article of the Recommendation; *“III. Member States should ... (e) Give foreign nationals resident within their territory the same access to education as that given to their own nationals.”*, the Committees of the NatCom, such as Education Committee, Intangible Cultural Heritage Committee, Gender Equality Committee and Management of Social Transformations Committee, visits the Protection Centers in which Syrian Refugees are welcomed in Turkey to observe the educational and cultural activities and prepares report to share with the relevant authorities, inter alia, with those in charge of the implementation of the Recommendation.

Works of Council of Higher Education

Council of Higher Education (CoHE) started to raise awareness about the accessibility of people with disabilities to higher education institutions, educational opportunities and socio-cultural activities and to promote good practices under the mottos “Accessible Accessibility” and “Accessible Education”. In 2018, CoHE started giving “University Accessibility Awards” to universities. CoHE has awarded 16 Universities within the category of “Accessibility in Space”, 7 Universities within the category of “Accessibility in Education”, 3 Universities in “Accessibility in Socio-Cultural Activities”, 3 Universities received Programme Awards. In 2019, 26 Universities were awarded within the category of “Accessibility in Space”, 6 Universities within the category of “Accessibility in Education”, 7 Universities in “Accessibility in Socio-Cultural Activities”, 2 Universities received Programme Awards. As for 2020, the call is closed and the evaluations are being processed.